

CHAPTER 91

Air Corporations Act, 1949

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An Act to consolidate the enactments relating to the constitution and functions of the British Overseas Airways Corporation, the British European Airways Corporation and the British South American Airways Corporation.
[16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Constitution of the corporations

The Air
Corporations.

1.—(1) There shall be two corporations to be known as “the British Overseas Airways Corporation” and “the British European Airways Corporation” and, subject to the transitional

provisions of this Act as to its merger with the British Overseas Airways Corporation, there shall also be a corporation to be known as "the British South American Airways Corporation."

(2) The three corporations mentioned in the preceding subsection are hereinafter referred to as "the corporations" and the two corporations first mentioned therein are hereinafter referred to as "the permanent corporations."

2.—(1) Each of the corporations shall consist of a chairman, a deputy chairman and such number of other members as the Minister may from time to time determine: Constitution
of the
corporations.

Provided that—

- (a) the total number of members of each corporation shall not be less than five nor more than eleven;
- (b) two deputy chairmen of the British Overseas Airways Corporation may be appointed.

(2) The members of each of the corporations shall be appointed by the Minister, who shall also appoint the chairman and deputy-chairman or deputy-chairmen of each corporation from among its members.

(3) The supplementary provisions contained in the First Schedule to this Act shall have effect in relation to each of the corporations.

Functions of the corporations

3.—(1) Each of the corporations shall, subject to the provisions of this Act, have power to provide air transport services and to carry out all other forms of aerial work, and may provide such services and carry out such work, whether on charter terms or otherwise, in any part of the world; and it shall be the duty of each of the corporations to exercise those powers so as to secure that the air services which they may provide are developed to the best advantage, and, in particular, to exercise those powers so as to secure that the services provided by the corporation are provided at reasonable charges. Functions
of the
corporations.

(2) Each of the corporations shall have power, subject as hereinafter provided, to do anything which is calculated to facilitate the discharge of their functions under the preceding subsection, or of any other functions conferred or imposed on the corporation by or under this Act, or is incidental or conducive to the discharge of any such functions.

(3) The Minister may, by an order relating to any of the corporations, define the powers conferred upon the corporation by the preceding provisions of this section so far as he thinks it desirable so to do for the purpose of securing that the public

are properly informed as to the general nature and scope of the activities in which the corporation may engage ; but nothing in any such order shall prejudice the generality of the powers conferred by the preceding provisions of this section.

Save as may be expressly provided by an order made under this subsection, none of the corporations shall have power to manufacture air-frames or aero-engines or airscrews.

(4) Without prejudice to the generality of the powers conferred by the preceding provisions of this section, each of the corporations shall in particular have power, subject as hereinafter provided—

- (a) to acquire any undertaking constituted for the purpose of providing air transport services or of engaging in any other activities of a kind which the corporation have power to carry on, or to acquire, hold or have any shares or stock in, or any financial interest in, any such undertaking ;
- (b) to promote the formation of any such undertaking as is mentioned in the preceding paragraph ; and
- (c) to lend money to, or enter into guarantees for the benefit of, any such undertaking as aforesaid.

(5) The Minister may, by an order relating to any of the corporations, limit the powers of the corporation, to such extent as he thinks desirable in the public interest, by providing that any power of the corporation specified in the order shall not be exercisable except in accordance with a general or special authority given by him.

(6) Any statutory instrument containing an order made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Appointment
of committees.

4. Each of the corporations shall appoint such committees, with such advisory or executive functions, as are necessary for the purpose of securing the efficient discharge of the functions of the corporation, and, in particular, for the purpose of securing that those functions are exercised with due regard to the circumstances and requirements of particular areas.

General
powers of
Minister in
relation to
the corpora-
tions.

5. The Minister may, after consultation with any of the corporations, give to that corporation directions of a general character as to the exercise and performance by that corporation of their functions in relation to matters appearing to the Minister to affect the national interest ; and the corporation concerned shall give effect to any such directions.

Use of aircraft
registered in
His Majesty's
dominions.

6. Without prejudice to their general duty to comply with directions given by the Minister under this Act, each of the corporations shall in particular comply with such directions as

may from time to time be given by the Minister, after consultation with the corporation, for securing that, to such extent and in such cases as may be specified in the directions, aircraft used by the corporation in connection with any service operated by them shall be registered in some part of His Majesty's dominions.

7.—(1) Except in so far as is otherwise provided by sections twenty-seven and thirty-three of this Act, it is hereby declared that nothing in this Act exempts any of the corporations from liability for any tax, duty, rate, levy or other charge whatsoever, whether general or local. Corporations not to be exempt from taxation, etc.

(2) It is hereby declared that no provision of this Act conferring any power or imposing any duty upon any of the corporations authorises the disregard by the corporation of any rule of law, whether having effect by virtue of any enactment or otherwise.

(3) Without prejudice to the generality of the provisions of the last preceding subsection, nothing in this Act shall be construed as exempting any of the corporations, or any person employed by any of the corporations, from compliance with the provisions of any Order in Council made or having effect under section thirteen of the Civil Aviation Act, 1949 (which relates to the licensing of air transport and commercial flying).

Borrowing powers

8.—(1) Each of the permanent corporations may, with the consent of the Treasury, or in accordance with the terms of any general authority given by the Treasury, borrow temporarily, by way of overdraft or otherwise, such sums as the corporation may require for meeting their obligations or discharging their functions. Borrowing powers of the corporations.

(2) Subject to the provisions of this Act, each of the permanent corporations may, with the consent of the Treasury, borrow money by the issue of stock for all or any of the following purposes, that is to say—

- (a) the provision of working capital ;
- (b) the promotion of other undertakings, the acquisition of other undertakings or of shares or stock in other undertakings, and the making of loans to, and the fulfilment of guarantees given for the benefit of, other undertakings ;
- (c) the redemption of any stock which the corporation are required or entitled to redeem ; and

- (d) any other expenditure properly chargeable to capital account, including the repayment of any money temporarily borrowed under subsection (1) of this section for any of the purposes mentioned in the preceding paragraphs of this subsection.

Provisions as
to stock of the
corporations.

9.—(1) Each of the permanent corporations may create and issue any stock required for the purpose of exercising their powers under the last preceding section, and may also, with the consent of the Treasury, create and issue stock which is to be allotted as consideration for the acquisition of other undertakings or of shares or stock in other undertakings.

(2) Subject to the provisions of subsection (1) of section twenty-eight of this Act, stock issued by any of the corporations and the interest thereon shall be charged on the undertaking and all property and revenues of that corporation.

(3) Subject to the provisions of this Act, the stock of each of the corporations shall be issued, transferred, dealt with and redeemed upon such terms and in accordance with such regulations as the Minister, with the approval of the Treasury, may prescribe, and any such regulations may, in relation to any such stock, apply with or without modifications any provisions of the Local Loans Act, 1875, or of any enactment relating to stock issued by a local authority.

(4) The approval of the Minister shall be required for naming or changing the name of stock issued by the British Overseas Airways Corporation.

Power of
Treasury to
guarantee
stock and
temporary
loans of the
corporations.

10.—(1) The Treasury may guarantee, in such manner and on such conditions as they think fit, the redemption or repayment of, and the payment of any interest on, any stock issued, or temporary loan raised, by any of the corporations.

(2) Any sums required by the Treasury for fulfilling a guarantee given under this section shall be charged on and issued out of the Consolidated Fund of the United Kingdom, or the growing produce thereof (hereinafter referred to as "the Consolidated Fund"), and any sums received by way of repayment of any sums so issued, or by way of interest thereon, shall be paid into the Exchequer.

(3) The undertaking and all property and revenues of the corporation concerned shall be charged with the repayment of any sums so issued out of the Consolidated Fund, including interest thereon at such rates as the Treasury may determine; and any such charge shall rank—

- (a) where the charge is a charge for the repayment of sums issued out of the Consolidated Fund in respect of stock,

next after the principal and interest of the stock and any sums which the corporation are bound to set aside towards the redemption of the stock, and in priority to any other charge not existing at the date of the issue of the stock ; and

- (b) where the charge is a charge for the repayment of sums issued out of the Consolidated Fund in respect of a temporary loan, next after the principal and interest of the loan (in so far as that principal or interest are charged upon the undertaking, property or revenues of the corporation), and in priority to any other charge not existing at the date of the raising of the loan.

(4) Immediately after any guarantee is given under this section, the Treasury shall lay a statement of the guarantee before each House of Parliament.

(5) Where any sum is issued out of the Consolidated Fund under this section, the Treasury shall, as soon as possible after the end of each financial year beginning with that in which the sum is issued and ending with that in which all liability in respect of the principal of the sum and in respect of interest thereon is finally discharged, lay before each House of Parliament an account of that sum and of any payments made, during the financial year to which the account relates, by way of repayment of that sum or by way of interest thereon.

11. Where the payment of principal and interest on any stock issued by any of the corporations is guaranteed by the Treasury, transfers of the stock shall be exempt from all stamp duties.

Transfers of
guaranteed
stock to be free
of stamp duty.

12.—(1) Subject as hereinafter provided, the aggregate of the amounts outstanding in respect of the principal of any stock issued and of any temporary loans raised by the British Overseas Airways Corporation shall not at any time exceed sixty million pounds.

Limitation
of the
borrowing
powers of the
corporations.

(2) Subject as hereinafter provided, the aggregate of the amounts outstanding in respect of the principal of any stock issued and of any temporary loans raised by the British European Airways Corporation shall not at any time exceed twenty million pounds.

(3) Nothing in this section shall prevent either of the permanent corporations from borrowing in excess of the limit prescribed by the preceding provisions of this section for the purpose of redeeming any stock of the corporation which they are required or entitled to redeem, or of paying off any temporary loan.

Exchequer grants

Exchequer
grants to the
corporations.

13.—(1) In respect of each financial year which expires before the first day of April, nineteen hundred and fifty-six, each of the corporations shall, at such time before the beginning of the year as the Minister may direct, submit to the Minister—

- (a) a programme of the air transport services which the corporation propose to provide during that year and of the other activities in which the corporation propose to engage during that year; and
- (b) an estimate of the revenue to be received by the corporation during that year and of the expenditure to be incurred by them on revenue account during that year.

(2) Every programme and estimate so submitted shall be in such form and shall contain such particulars, and every estimate so submitted shall be made upon such basis, as the Minister may, with the approval of the Treasury, direct.

(3) If, after the Minister has considered any such programme and estimate and has given to the corporation concerned an opportunity of making representations to him with respect thereto, it appears to the Minister and to the Treasury that the expenditure on revenue account of the corporation concerned during the financial year to which the estimate relates will be in excess of their revenue during that year, the Minister and the Treasury shall determine whether any Exchequer grant should be made to the corporation concerned for the year in question, and, if such a grant is to be made, the basis on which the amount thereof is to be calculated; and the Minister shall, at the conclusion of the year, make to the corporation such grant, if any, as falls to be made upon that basis.

(4) If having regard to any determination made for the purposes of the last preceding subsection it appears to the Minister to be expedient so to do, he may, notwithstanding that the year to which the determination relates is not yet ended, make to the corporation concerned such payments as the Treasury may approve on account of any grant which he may subsequently become authorised to make to the corporation for that year under the preceding provisions of this section.

Any such payment shall be provisional only, and, when it is determined what grant ultimately falls to be made to the corporation for the year under the preceding provisions of this section, shall be subject to adjustment, either by way of payments to the corporation by the Minister, or payments to the Minister by the corporation, as the case may require.

(5) In this section—

- (a) the expression “revenue” does not include any grant which may be made by the Minister under this Act; and

- (b) the expression "expenditure" in relation to any estimate, includes any sum thereby proposed to be set aside or allocated for any purpose, other than a sum which would fall to be charged to capital account.

14.—(1) If, after the Minister and the Treasury have made any determination for the purposes of subsection (3) of the last preceding section, it appears that any material assumption is, or is likely to be, at variance with the facts, the corporation concerned may, and shall if the Minister so requires, submit to the Minister a statement giving particulars of the discrepancy.

Revision of
Exchequer
grants to the
corporations.

In this subsection the expression "material assumption", in relation to any determination, means any of the assumptions which were made for the purpose of arriving at the estimate of revenue and expenditure upon which the determination was based.

(2) If having regard to any such statement, and to any information furnished to him in connection therewith, the Minister is satisfied that any determination made for the purposes of subsection (3) of the last preceding section ought to be revised, he may, with the consent of the Treasury, revise the determination, and where any such revision is made the amount of the grant to be made under the last preceding section to the corporation concerned for the financial year in question shall be increased or reduced accordingly.

(3) Where any such revision is made, such adjustments shall be made, either by way of payments to the corporation by the Minister, or payments to the Minister by the corporation, as are necessary in consequence of the revision.

(4) Where any such determination has been so revised as aforesaid, the determination may be further revised in accordance with the provisions of this section, and the said provisions shall have effect for the purposes of any such further revision as they have effect for the purposes of a first revision.

15.—(1) The Minister may, with the approval of the Treasury, make grants to any associate of any of the corporations in consideration of promises made by the associate with respect to the performance, at any time before the first day of April, nineteen hundred and fifty-six, of functions similar to those which any of the corporations have power to perform.

Exchequer
grants to
associates
of the
corporations.

(2) It shall be a term of every agreement made by the Minister to make grants in pursuance of this section that no grants shall be payable under the agreement unless the associate complies with such requirements as may be imposed by the Minister for securing that one or more directors of the associate shall be a person or persons nominated by him.

(3) In this Act the expression “associate”, in relation to any of the corporations, means any subsidiary of the corporation, or any undertaking which—

- (a) is constituted for the purpose of providing air transport services or of engaging in any other activities of a kind which the corporation have power to carry on ; and
- (b) is associated with the corporation under the terms of any arrangement for the time being approved by the Minister as being an arrangement calculated to further the efficient discharge of the functions of the corporation ;

Limitation of
Exchequer
grants.

16. The total amount of the grants made by the Minister under the preceding provisions of this Act in respect of any one financial year shall not exceed eight million pounds.

Expenses and
receipts of
Minister.

17. All sums payable by the Minister in accordance with the preceding provisions of this Act shall be defrayed out of moneys provided by Parliament ; and any sums received by him in accordance with those provisions shall be paid into the Exchequer.

General financial provisions

Reserve
funds.

18.—(1) Each of the corporations shall have a reserve fund.

(2) The management of the said fund, the sums to be carried from time to time to the credit thereof, and the application thereof shall be as the corporation concerned may determine :

Provided that—

- (a) no part of the said fund shall be applied otherwise than for the purposes of the corporation ; and
- (b) the power of the Minister to give directions to the corporation shall extend to the giving to them, with the approval of the Treasury, of directions as to any matter relating to the establishment or management of the said fund, the carrying of sums to the credit thereof, or the application thereof, notwithstanding that the directions may be of a specific character.

Application
of revenues.

19.—(1) Any excess of the revenues of any of the corporations for any financial year over the total sums properly chargeable by the corporation to revenue account for that year, including in such sums (without prejudice to the generality of that expression) sums credited under the last preceding section to the reserve fund of the corporation, shall be applied by the corporation in such manner as the Minister, with the approval of the Treasury and after consultation with the chairman of the corporation, may direct.

(2) Any direction given under the preceding subsection may require the whole or any part of any such excess as aforesaid to be paid into the Exchequer:

Provided that the total amount which has been paid into the Exchequer out of the revenues of any one of the corporations by virtue of any such directions shall not at any time exceed the total amount of the grants which have been made by the Minister to that corporation under the Civil Aviation Act, 1946, or this Act.

Staff, wages, pensions, etc.

20.—(1) It shall be the duty of each of the corporations, except in so far as the corporation are satisfied that adequate machinery exists for achieving the purposes of this subsection, to seek consultation with any organisation appearing to the corporation to be appropriate with a view to the conclusion between the corporation and that organisation of such agreements as appear to the parties to be desirable with respect to the establishment and maintenance of machinery for—

Terms and conditions of employment of staff, etc.

- (a) the settlement by negotiation of terms and conditions of employment of persons employed by the corporation, with provision for reference to arbitration in default of such settlement in such cases as may be determined by or under the agreements; and
- (b) the discussion of matters affecting the safety, health and welfare of persons employed by the corporation, and of other matters of mutual interest to the corporation and such persons, including efficiency in the operation of the corporation's services.

(2) Where any of the corporations conclude such an agreement as is mentioned in the last preceding subsection, or any variation is made in such an agreement, the corporation concerned shall forthwith transmit particulars of the agreement or the variation to the Minister and the Minister of Labour and National Service.

(3) In relation to any agreement affecting employment in Northern Ireland, the reference in the last preceding subsection to the Minister of Labour and National Service shall be construed as including a reference to the Ministry of Labour and National Insurance for Northern Ireland.

21.—(1) The Minister shall by regulations provide for the establishment and maintenance of one or more pension schemes for the purpose of providing pensions and other similar benefits in respect of the service of corporation employees of such classes as may be specified in the regulations, and the Minister shall by such regulations in particular provide for securing benefits in the case of injury or death.

Pensions, etc.

In this section the expression " corporation employee " means an employee of any of the corporations.

(2) Regulations made under this section, may, for the purpose of providing funds from which benefits are to be paid, provide for the payment of contributions by the corporation concerned or by employees of the corporation, or both by the corporation and by such employees, and may in particular provide for the payment of such contributions in respect of service as an employee of any of the corporations before the coming into force of the regulations, and for the payment of benefits in respect of any such service.

(3) Regulations made under this section may make provision for securing that service with any undertaking other than the corporations may, in such cases, upon such terms and subject to such conditions as may be specified in the regulations, be reckoned for the purposes of the payment of benefits under the regulations.

Accounts, reports and information

Accounts and audit.

22.—(1) Each of the corporations shall keep proper accounts and proper records in relation thereto, and shall prepare in respect of each financial year a statement of accounts in such form as the Minister may, with the approval of the Treasury, direct, being a form which shall conform with the best commercial standards and which shall distinguish between the provision of air transport facilities upon scheduled journeys, the provision of air transport facilities otherwise than upon such journeys, and the carrying out of aerial work which does not consist of the provision of air transport facilities.

(2) The statement of accounts prepared in respect of any financial year by any of the corporations shall contain such particulars with respect to any undertaking which at any time during that year was a subsidiary of the corporation as the Minister may direct.

(3) The accounts of each of the corporations shall be audited by auditors appointed annually by the Minister.

(4) As soon as the accounts of any of the corporations for any financial year have been audited, the corporation shall send to the Minister a copy of the statement of accounts prepared by them for that year in accordance with this section, together with a copy of any report made by the auditors on that statement or on the accounts of the corporation.

(5) The Minister shall lay a copy of every such statement and report before each House of Parliament.

23.—(1) Each of the corporations shall, as soon as possible after the end of each financial year, make to the Minister a report dealing with the operations of the corporation during that year. Annual report
and periodical
returns.

(2) The Minister shall lay a copy of every such report before each House of Parliament.

(3) The report for any year shall set out any direction given by the Minister to the corporation during that year unless the Minister has notified to the corporation his opinion that it is against the national interest so to do.

(4) Each of the corporations shall, in respect of each planning period, as defined for the purposes of this section, and at such time before the beginning of that period as the Minister may direct, submit to the Minister—

(a) a programme of the air transport services which the corporation propose to provide during that period and of the other activities in which the corporation propose to engage during that period; and

(b) an estimate of the receipts of the corporation during that period, and of the expenditure, whether on revenue account or on capital account, to be incurred by the corporation during that period.

(5) In respect of each financial year, each of the corporations shall, at such time before the beginning of the year as the Minister may direct, submit to the Minister an estimate of the expenditure to be incurred by the corporation on capital account during the year.

(6) Without prejudice to their duties under the preceding provisions of this Act, each of the corporations shall provide the Minister with such information relating to the undertaking of the corporation and to the undertaking of any associate of the corporation (including information relating to any activities proposed to be undertaken by the corporation or any such associate) as the Minister may from time to time require:

Provided that no such requirement shall impose upon any of the corporations the duty of providing the Minister with information which the corporation do not possess and cannot reasonably be expected to obtain.

(7) For the purpose of providing the Minister with any information which he may require in accordance with the provisions of the last preceding subsection, each of the corporations shall permit any person authorised by the Minister in that behalf to inspect and make copies of the accounts, books, documents or papers of the corporation, and shall afford such explanation thereof as that person or the Minister may reasonably require.

(8) In this section—

- (a) the expression “ planning period ” means the period of three financial years beginning with the first day of April, nineteen hundred and forty-seven, and every period of three financial years which follows immediately upon the end of a planning period ;
- (b) the expression “ receipts ” does not include any grant which may be made by the Minister ; and
- (c) the expression “ expenditure ”, in relation to any estimate, includes any sum thereby proposed to be set aside or allocated for any purpose.

*Reservation of certain air services to the corporations and
their associates*

Reservation of
certain air
services to the
corporations
and their
associates.

24.—(1) Subject to the provisions of this section, it shall not be lawful for any person, other than the corporations, their associates, and the servants and agents of the corporations and their associates, to carry passengers or goods by air for hire or reward upon any scheduled journey between two places of which at least one is in the United Kingdom.

(2) In this Act the expression “ scheduled journey ” means one of a series of journeys which are undertaken between the same two places and which together amount to a systematic service operated in such a manner that the benefits thereof are available to members of the public from time to time seeking to take advantage of it.

(3) Nothing in this section shall restrict the right of any person—

- (a) to carry passengers for the sole purpose of instructing them in flying or the duties of aircrews ; or
- (b) to carry passengers or goods for the sole purpose of providing an air ambulance or rescue service ; or
- (c) in accordance with arrangements for the time being approved by the Minister as being in the public interest, to carry a party of passengers and their baggage (if any) upon a series of three or more journeys organised as a tour for the common enjoyment of those passengers.

(4) Nothing in this section shall restrict the right of any person, for the purposes of any air transport undertaking of which the principal place of business is in any country outside the United Kingdom, to provide transport for passengers or goods in accordance with the terms of any agreement for the time being in force between His Majesty’s government in the United Kingdom and the government of that country.

(5) A person who carries a passenger, or carries any goods, in contravention of the provisions of this section shall be liable in respect of each offence—

- (a) on summary conviction thereof, to a fine not exceeding five hundred pounds, or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment; and
- (b) on conviction thereof on indictment, to a fine not exceeding five thousand pounds, or to imprisonment for a term not exceeding two years, or to both such fine and such imprisonment.

25.—(1) For the purpose of determining whether an offence has been committed against the last preceding section, the Minister or anyone acting under his authority may require any person who, whether by providing an aircraft or negotiating a contract or otherwise, makes facilities available for travel upon any journey by air between two places of which at least one is in the United Kingdom, or for the consignment of goods upon any such journey, or any servant or agent of any such person as aforesaid, to provide the Minister with such information and documents relating to the journey as may be specified in the requirement. Power of Minister to require information.

(2) Any person having information or documents in his possession who fails to comply with any requirement relating to that information or those documents, being a requirement duly made under the preceding subsection, shall be liable on summary conviction to a fine not exceeding one hundred pounds.

Special powers in case of emergency

26.—(1) In time of war whether actual or imminent, or of great national emergency, the Minister may by order require that the whole or any part of the undertaking of, or of any property or rights of, or under the control of, any of the corporations shall be placed at the disposal of the Minister, or of such persons as may be provided by the order. Special powers in case of emergency.

(2) So long as any such order is in force, a corporation shall comply with any directions which may be given to them by or under the direction of the Minister.

(3) An order under this section may make, for the purposes of the order, such provision as an Order in Council under section eight of the Civil Aviation Act, 1949, may make for the purpose of securing compliance with provisions thereof having effect by virtue of paragraph (1) of subsection (2) of that section.

(4) Section fifty-eight of the Civil Aviation Act, 1949 (which authorises any order under the enactments specified therein to provide for the detention of aircraft to secure compliance with the order) shall have effect as if any reference therein to an order

under an enactment to which Part VI of that Act applies included a reference to an order made under this section, but this provision shall be without prejudice to the provisions of the last preceding subsection.

(5) Any person who suffers direct injury or loss, owing to the operation of an order of the Minister under this section, shall be entitled to receive compensation from the Minister, the amount thereof to be fixed, in default of agreement, by the Lands Tribunal or the Lands Tribunal for Scotland, as the case may be; and the principles of the Acquisition of Land (Assessment of Compensation) Act, 1919, shall, with the necessary modifications, apply where possession is taken of any land.

(6) Any expense incurred by the Minister in the exercise of his powers under this section shall be paid out of moneys provided by Parliament.

(7) The disputes which by this section are directed to be determined by the Lands Tribunal shall, in the application of this section to Northern Ireland, be determined by an official arbitrator appointed under section one of the Acquisition of Land (Assessment of Compensation) Act, 1919, and the arbitrator shall be selected in accordance with rules made by the Reference Committee under the said section one.

(8) The disputes which by this section are directed to be determined by the Lands Tribunal or the Lands Tribunal for Scotland shall, in the period before the coming into force of the Lands Tribunal Act, 1949, for the part of Great Britain in question, be determined by an official arbitrator appointed under section one of the Acquisition of Land (Assessment of Compensation) Act, 1919, and the arbitrator shall be selected in accordance with rules made by the Reference Committee under the said section one.

Transitional provisions relating to merger of British South American Airways Corporation and British Overseas Airways Corporation

Merger of
British South
American
Airways
Corporation
and British
Overseas
Airways
Corporation.

27.—(1) Whereas on the passing of the Airways Corporations Act, 1949, that is to say on the thirtieth day of July, nineteen hundred and forty-nine, all property of the British South American Airways Corporation situated in the United Kingdom, all aircraft of that corporation registered in the United Kingdom and all rights, liabilities and obligations of that corporation which were then enforceable in the United Kingdom were, by virtue of subsection (1) of section one of that Act, transferred to the British Overseas Airways Corporation:

Now therefore—

(a) the British South American Airways Corporation shall have power, without consideration, to transfer to the

British Overseas Airways Corporation any property or rights not transferred by virtue of the said subsection (1); and

- (b) the British Overseas Airways Corporation shall have power, without consideration, to undertake any liabilities or obligations of the British South American Airways Corporation not transferred as aforesaid.

(2) Without prejudice to the provisions of section fifty-two of the Finance Act, 1946 (which exempts from stamp duty certain documents connected with statutory schemes for the carrying on of undertakings under national ownership or control)—

- (a) stamp duty shall not be payable on any conveyance, agreement or other instrument executed in pursuance of the last preceding subsection or subsection (1) of section one of the Airways Corporations Act, 1949; and
- (b) section eight of the Finance Act, 1899 (which imposes stamp duty in respect of loan capital) shall not apply to any loan capital transferred by virtue of the last preceding subsection or subsection (1) of the said section one.

(3) When the Minister is satisfied that the necessary arrangements have been made for transferring to the British Overseas Airways Corporation any property, rights, liabilities and obligations of the British South American Airways Corporation not transferred by virtue of subsection (1) of section one of the said Act of 1949, he may by order direct that the British South American Airways Corporation shall be dissolved on such day as may be specified in the order (in this Act referred to as "the appointed day").

28.—(1) The three per cent. British South American Airways Stock and Stock, 1980-1983, shall be deemed to be stock issued by the loans. British Overseas Airways Corporation, and shall be charged accordingly on the undertaking and the property and revenues of that corporation; and as from the sixteenth day of February, nineteen hundred and fifty, that stock shall be deemed to be of the same issue as the three per cent. Airways Stock, 1980-1983, and shall be subject to the terms and conditions applicable to the last mentioned stock.

(2) For the purposes of subsection (1) of section twelve of this Act temporary loans raised by the British South American Airways Corporation and not repaid before the thirtieth day of July, nineteen hundred and forty-nine shall be treated as temporary loans raised by the British Overseas Airways Corporation.

(3) Where the Treasury has guaranteed any stock issued or any temporary loan raised by the British South American Airways Corporation, subsection (3) of section ten of this Act shall have effect in relation to any sums issued out of the Consolidated Fund under subsection (2) of that section or subsection (2) of section nine of the Civil Aviation Act, 1946, in respect of the guarantee as if the corporation concerned was the British Overseas Airways Corporation.

Disposal of
excess revenue.

29. For the purposes of the proviso to subsection (2) of section nineteen of this Act any grant made before the thirtieth day of July, nineteen hundred and forty-nine to the British South American Airways Corporation shall, in relation to any direction given under that section on or after that date, be deemed to have been made to the British Overseas Airways Corporation.

Accounts, etc.

30.—(1) In respect of the financial year ending with the thirty-first day of March, nineteen hundred and fifty, and any subsequent financial year beginning before the appointed day—

(a) the statement of accounts prepared by the British Overseas Airways Corporation under section twenty-two of this Act may extend to the accounts of the British South American Airways Corporation, and in that case no such statement shall be prepared or sent to the Minister under that section by the British South American Airways Corporation; and

(b) the report made to the Minister by the British Overseas Airways Corporation under subsection (1) of section twenty-three of this Act may extend to the operations of the British South American Airways Corporation, and in that case no report shall be made under that subsection by the British South American Airways Corporation.

(2) Any programme or estimate which, before the appointed day, is submitted to the Minister by the British Overseas Airways Corporation in accordance with subsection (1) of section thirteen or subsection (4) or subsection (5) of section twenty-three of this Act may extend to the services, receipts and expenditure of the British South American Airways Corporation, and in any such case no programme or estimate shall be so submitted by the British South American Airways Corporation.

Supplementary.

31.—(1) Any proceeding or cause of action pending or existing immediately before the thirtieth day of July nineteen hundred and forty-nine by or against the British South American Airways Corporation may be continued and enforced by or against the British Overseas Airways Corporation as it might have been by or against the British South American Airways

Corporation if neither this Act nor the Airways Corporations Act, 1949, had been passed.

(2) On and after the appointed day, references to the British South American Airways Corporation in any enactment, order, rule, regulation or other instrument shall be construed as references to the British Overseas Airways Corporation:

Provided that this section shall not apply to any such reference as aforesaid in the Civil Aviation Act, 1949, or this Act or in any regulations made under section thirty-six, fifty-five or fifty-six of that Act or section nine or twenty-one of this Act.

(3) Any undertaking which immediately before the appointed day is associated with the British South American Airways Corporation under the terms of an arrangement by virtue of which it is an associate of that corporation, shall be deemed, on and after the appointed day, to be so associated with the British Overseas Airways Corporation and to be an associate of that corporation accordingly.

(4) Without prejudice to the provisions of section twenty-seven of this Act and of subsection (1) of this section, all deeds, bonds, agreements and instruments which are subsisting immediately before the appointed day and affect the British South American Airways Corporation shall on and after the appointed day be as of full force and effect against or in favour of the British Overseas Airways Corporation and enforceable as fully and effectually as if, instead of the British South American Airways Corporation, the British Overseas Airways Corporation had been named therein or had been a party thereto.

Transitional provisions relating to the acquisition of certain undertakings by British Overseas Airways Corporation

32.—(1) Any cause of action existing immediately before the transfer date by or against either of the vendor companies in respect of its undertaking may be continued and enforced by or against the British Overseas Airways Corporation, as it might have been by or against that company, if neither this Act nor the British Overseas Airways Act, 1939, had been passed.

Transitional provisions relating to the acquisition of certain undertakings by British Overseas Airways Corporation.

(2) All deeds, bonds, agreements, instruments and working arrangements which were subsisting immediately before the transfer date and affected either of the vendor companies, shall in so far as they relate to the undertaking of that company, be of as full force and effect against or in favour of the British Overseas Airways Corporation, and enforceable as fully and effectually as if, instead of the company, the corporation had been named therein or had been a party thereto.

(3) Any person who, on the transfer date, had in his possession or under his control any books, documents or papers, which relate to an undertaking transferred from either of the

vendor companies to the British Overseas Airways Corporation and which belonged to either of the vendor companies, or would have so belonged if such transfer had not taken place, shall be liable to account for the said documents to the corporation and shall, at the request of the corporation, deliver them up to the corporation, or to such person as the corporation may appoint:

Provided that nothing in this section shall be construed as over-riding or affecting a lien to which any person may be entitled.

(4) In this section and in the following provisions of this Act—

- (a) the expression “transfer date” means the day on which the undertakings of Imperial Airways Limited and British Airways Limited were under section nine of the British Overseas Airways Act, 1939, transferred to the British Overseas Airways Corporation, that is to say, the first day of April, nineteen hundred and forty; and
- (b) the expression “the vendor companies” means Imperial Airways Limited and British Airways Limited.

Exemption
from stamp
duty.

33. Stamp duty shall not be chargeable—

- (a) on any of the purchase agreements or on any conveyance, assignment or other instrument of transfer made in pursuance of any of those agreements; or
- (b) under section twelve of the Finance Act, 1895, on any instrument relating to the vesting of the undertakings of either of the vendor companies in the British Overseas Airways Corporation.

In this section, the expression “purchase agreements” means the contracts whereby the undertakings of the vendor companies were acquired by the British Overseas Airways Corporation.

Transitory provisions as to superannuation, etc.

Pension and
superannuation
schemes of
vendor
companies.

34. The provisions contained in the Second Schedule to this Act shall have effect with respect to the pension and superannuation schemes of the vendor companies, and in that Schedule the expression “the corporation” means the British Overseas Airways Corporation.

Superannua-
tion schemes
already
established
by British
Overseas
Airways
Corporation.

35.—(1) No person shall be a member of any pension superannuation or other benefit fund or scheme established by the British Overseas Airways Corporation before the first day of August, nineteen hundred and forty-six, for the benefit of persons employed by the corporation unless he was a member of that fund or scheme immediately before the said day.

(2) The Minister may by regulations make such provision as he thinks necessary for enabling any person who is a member of any fund or scheme so established or who is for the time being participating in any such scheme as is mentioned in the Second Schedule to this Act, to withdraw from that fund or scheme in consideration of being admitted, upon such terms as may be provided for by the regulations, to any scheme established under section twenty-one of this Act.

Supplemental

36.—(1) Proceedings for an offence against this Act—

Provisions
as to offences.

- (a) shall not, in England, be instituted except by or with the consent of the Minister or by or with the consent of the Director of Public Prosecutions ; and
- (b) shall not, in Northern Ireland, be instituted except by or with the consent of the Minister or by the Attorney-General for Northern Ireland.

(2) Where an offence against this Act has been committed by a body corporate, every person who at the time of the commission of the offence was a director, general manager, secretary or other similar officer of the body corporate, or was purporting to act in any such capacity, shall be deemed to be guilty of that offence, unless he proves that the offence was committed without his consent or connivance and that he exercised all such diligence to prevent the commission of the offence as he ought to have exercised having regard to the nature of his functions in that capacity and to all the circumstances.

37.—(1) Any power conferred by this Act on the Minister Regulations to make orders or regulations shall be exercisable by statutory and order. instrument.

(2) Any power conferred by this Act to make any Order in Council or order, other than the power conferred by section twenty-seven, shall be construed as including a power, exercisable in the like manner and subject to the like conditions, if any, to vary the Order in Council or order.

38.—(1) In this Act, except where the context otherwise Interpretation. requires or where it is otherwise expressly provided, the following expressions have the meanings respectively assigned to them, that is to say—

- “appointed day” has the meaning assigned to it by section twenty-seven of this Act ;
- “air transport service” means a service for the carriage by air of passengers, mails or other freight ;
- “associate”, in relation to any of the corporations, has the meaning assigned to it by section fifteen of this Act ;
- “director” includes any person occupying the position of director, by whatever name called ;

“financial year”, in relation to any of the corporations, means a period of twelve months beginning on the first day of April;

“Minister” means the Minister of Civil Aviation;

“remuneration” includes reasonable allowances in respect of expenses properly incurred in the pursuance of the duties of any office;

“revenue,” in relation to any of the corporations, includes grants made by the Minister to the corporation under this Act;

“scheduled journey” has the meaning assigned to it by section twenty-four of this Act;

“subsidiary,” in relation to any of the corporations, means any undertaking more than one half of the issued share capital whereof is held directly or through a nominee by the corporation, and any undertaking in relation to which the corporation have a power directly or indirectly to appoint the majority of the directors;

“transfer date” has the meaning assigned to it by section thirty-two of this Act;

“vendor companies” has the meaning assigned to it by section thirty-two of this Act;

(2) References in this Act to any enactment shall be construed as including references to that enactment as amended by or under any other enactment.

General
application
to Northern
Ireland.

39. The following provisions shall, in addition to any express provision for the application to Northern Ireland of any provision of this Act, have effect for the general application of this Act to Northern Ireland, that is to say—

(a) any reference to any enactment shall be construed as a reference to that enactment as it has effect in Northern Ireland;

(b) any reference to an Act of Parliament shall be construed as including a reference to an Act of the Parliament of Northern Ireland, and “enactment” includes an enactment of that Parliament;

(c) “summary conviction” means conviction subject to, and in accordance with, the Petty Sessions (Ireland) Act, 1851, and any Act amending that Act;

Application
to Channel
Islands and
Isle of Man.

40.—(1) His Majesty may by Order in Council direct that any of the provisions of this Act shall extend, with such exceptions, modifications and adaptations, if any, as may be specified in the Order, to any of the Channel Islands or to the Isle of Man:

Provided that this subsection shall not apply to sections eight, nine and ten, in so far as they relate to the British Overseas Airways Corporation, or section eleven, sections twenty-six to thirty-five or the Second Schedule.

(2) Any such Order in Council may provide for the payment of sums out of moneys provided by Parliament for any purpose for which sums are required to be so paid in consequence of the exercise of the powers conferred by the preceding subsection.

41.—(1) The enactments set out in the Third Schedule to Repeal and this Act are hereby repealed to the extent specified in the ^{savings.} third column of that Schedule :

Provided that without prejudice to the provisions of the Interpretation Act, 1889, this subsection shall have effect subject to the following provisions of this section.

(2) Nothing in this repeal shall affect any instrument made or any other thing whatsoever done under any enactment repealed by this Act, and every such instrument or thing shall continue in force and shall, so far as it could have been made or done under this Act, have effect as if made or done under the corresponding enactment of this Act.

(3) Nothing in this repeal shall affect the amount of any grant payable to any of the corporations under any enactment repealed by this Act or any adjustment which, but for this repeal, could have been made under section eleven of the Civil Aviation Act, 1946, and any such adjustment may be made as if this Act had not been passed.

(4) Nothing in this repeal shall affect the terms and conditions on and subject to which any person held office or served immediately before the commencement of this Act.

(5) Where under any Act passed before this Act there is a power to affect Acts of Parliament passed or in force before a particular time and that power would, but for the passing of this Act, have included power to change the law which is reproduced in this Act, then that power shall include power to make such provision as will secure the like change in the law as reproduced in this Act notwithstanding that this Act is not an Act passed or in force before that time and notwithstanding that the terms of this Act, apart from this subsection, are not such as to render that power applicable.

(6) Any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act or the corresponding enactment in this Act.

42. This Act may be cited as the Air Corporations Act, 1949. Short title.

SCHEDULES

Section 2.

FIRST SCHEDULE

SUPPLEMENTARY PROVISIONS AS TO THE CORPORATIONS

Tenure and Vacation of Office

1. Subject as hereinafter provided, a member of the corporation shall hold and vacate office as such in accordance with the terms of the instrument appointing him to be a member:

Provided that—

- (a) where a member becomes or ceases to be chairman or deputy chairman of the corporation, the Minister may vary the terms of the instrument appointing him to be a member of the corporation, so far as they relate to the date on which he is to vacate office as such; and
- (b) a member of the corporation may at any time, by notice in writing under his hand addressed to the Minister, resign his membership.

2. Subject as hereinafter provided, the chairman of the corporation and the deputy chairman of the corporation shall hold and vacate office as such in accordance with the instruments respectively appointing them:

Provided that the chairman or deputy chairman may at any time, by a notice in writing under his hand addressed to the Minister, resign his office as such.

3. If the chairman or deputy chairman of the corporation ceases to be a member of the corporation, he shall cease to be chairman or deputy chairman, as the case may be.

4. A member of the Commons House of Parliament shall not be appointed a member of the corporation.

5. If the Minister is satisfied that a member of the corporation—

- (a) has been absent from meetings of the corporation for a period longer than three consecutive months without the permission of the corporation; or
- (b) has become bankrupt or made an arrangement with his creditors; or
- (c) is incapacitated by physical or mental illness; or
- (d) is otherwise unable or unfit to discharge the functions of a member;

the Minister may declare his office as a member of the corporation to be vacant and shall notify the fact in such manner as the Minister thinks fit; and thereupon the office shall become vacant.

6. A member of the corporation who ceases to be a member shall be eligible for re-appointment.

7. The validity of any proceeding of the corporation shall not be affected by any vacancy amongst the members thereof, or by any defect in the appointment of a member thereof.

*The Deputy Chairman*1ST SCH.
—cont.

8. Where by any provision of this Act the Minister is required to consult with the chairman of the corporation before exercising any power, and either:—

- (a) the office of chairman of the corporation is vacant; or
- (b) by reason of illness, absence or any other cause the chairman is not available,

the Minister may comply with that requirement by consulting, before exercising the power, with the deputy chairman of the corporation, or in the case of the British Overseas Airways Corporation, at any time when two deputy chairmen thereof hold office, with either of the deputy chairmen.

Remuneration

9. The corporation shall pay to each member thereof, in respect of his office as such, such remuneration as may be determined by the Minister with the consent of the Treasury, and shall pay to the chairman and deputy chairman thereof, in respect of his office as such, such remuneration (in addition to any remuneration to which he may be entitled in respect of his office as a member) as may be so determined.

10. If any member of the corporation, other than the chairman or deputy chairman thereof, is employed about the affairs of the corporation otherwise than as a member thereof, the corporation may pay to that member such remuneration (in addition to any remuneration to which he may be entitled in respect of his office as a member) as the corporation may determine.

Meetings and proceedings

11. The quorum of the corporation and the arrangements relating to meetings thereof shall be such as the corporation may determine.

The common seal

12. The corporation shall have a common seal, and the fixing of the seal shall be authenticated by the signatures of—

- (a) the chairman of the corporation, or some other member thereof authorised either generally or specially by the corporation to act in his stead for that purpose; and
- (b) some other person authorised by the corporation, either generally or specially, to act for that purpose.

Instruments of the corporation

13. Any contract or instrument which, if entered into or executed by a person not being a body corporate, would not be required to be under seal, may be entered into or executed on behalf of the corporation by any person generally or specially authorised by them for that purpose.

14. Any document purporting to be a document duly executed under the seal of the corporation shall be received in evidence and shall, unless the contrary is proved, be deemed to be a document so executed.

Power to hold land

15. The corporation shall have power to hold land for the purposes of their functions without licence in mortmain.

SECOND SCHEDULE

Sections 34, 35. PROVISIONS AS TO PENSIONS AND SUPERANNUATION SCHEMES OF
VENDOR COMPANIES

PART I

Pensions Scheme of Imperial Airways Limited

1. In this Part of this Schedule—

- (a) the expression “the company” means Imperial Airways Limited;
- (b) the expression “the scheme” means the pension scheme established for the benefit of the employees of the company by a Trust Deed dated the twenty-third day of October nineteen hundred and thirty-six and made between the company of the first part Sidney Albert Dismore and Arthur Joseph Quin-Harkin of the second part, and Leslie Alan Walters and Rankin Lorimer Weir of the third part;
- (c) references to the scheme shall be construed as including references to the said Trust Deed.

2. The scheme shall continue in operation subject to the following provisions of this Part of this Schedule which shall have effect for the purposes of regulating the continued operation of the scheme.

3. No person who was, immediately before the transfer date, participating in the scheme shall be eligible to participate therein unless—

- (a) he was, immediately before the transfer date, in the service of the company;
- (b) he was then not eligible to participate in the scheme by reason only of the fact that he had not been in the service of the company for a sufficient length of time or was a labourer or a member of the staff locally engaged overseas; and
- (c) he has entered the service of the corporation;

and no person shall be eligible to participate in the scheme except in accordance with the provisions of the scheme as regulated by the provisions of this Part of this Schedule.

4. Any person who was, immediately before the transfer date, in the service of the company and has not entered the service of the corporation, shall—

- (a) if he was, immediately before the transfer date, less than fifty-five years of age be treated as if he were then discharged from the service of the company for reasons other than misconduct;
- (b) if he was, immediately before the transfer date, fifty-five years or more but had not then attained the age of sixty years be treated, at his option, either as if he had then retired on pension before attaining the age of sixty years with the permission of the Board of the company, or as if he had then been discharged from the service of the company for reasons other than misconduct; or
- (c) if he was, immediately before the transfer date, sixty years of age or more, be treated as having then retired from the service of the company.

5. Subject to the provisions of this Part of this Schedule, the scheme shall have effect as if—

2ND SCH.
—cont.

- (a) the corporation had been in existence on the date of the execution of the said Trust Deed and had executed that document in the place of the company; and
- (b) for any reference (by whatever form of words) in the scheme to the company, or to the Board of the company, there were substituted a reference to the corporation; and
- (c) the service or employment under or by the company of any person had been service or employment under or by the corporation; and
- (d) any thing done, permitted or omitted by or on behalf of the company (including any thing which is by virtue of the preceding provisions of this Part of this Schedule to be deemed to have been permitted by the company or by the Board of the company) had been done, permitted or omitted, as the case may be, by the corporation.

6. Nothing contained in this Part of this Schedule shall prejudice or affect any power of altering, amending, adding to or cancelling the scheme in accordance with the provisions thereof.

PART II

Superannuation Scheme of British Airways Limited

1. In this Part of this Schedule—

- (a) the expression “the company” means British Airways Limited;
- (b) the expression “the Trust Deed” means the Trust Deed (relating to the provisions of superannuation benefits for the employees and salaried directors of the company and its associated or subsidiary companies by means of a Superannuation Scheme under which endowment assurances are to be effected with the Sun Life Assurance Society) dated the seventeenth day of March nineteen hundred and thirty-nine, and made between the company of the one part, and John Ronald McCrindle, Walter Cyril Tomlinson, David Smillie Smith Macdowall, and John Vincent Wood of the other part;
- (c) the expression “the regulations” means the regulations contained in the First Schedule to the Trust Deed;
- (d) the expression “the scheme” includes both the Trust Deed and the Superannuation Scheme to which it relates as existing immediately before the transfer date; and
- (e) the expression “Trustees’ Assurance” and “Employee’s Assurance” have the same meanings respectively as in the regulations.

2. The scheme shall continue in operation subject to the following provisions of this Part of this Schedule which shall have effect for the purpose of regulating the continued operation of the scheme.

2ND SCH.
—cont.

3. No person who was not immediately before the transfer date participating in the scheme shall be eligible to participate in the scheme unless—

- (a) he was, immediately before the transfer date, an employee as defined by the regulations; or
- (b) he had, immediately before the transfer date, been in the service of the company for a period of less than three months; and
- (c) in either case, he has entered the service of the corporation;

and no person shall be eligible to participate in the scheme except in accordance with the provisions of the scheme as regulated by the provisions of this Part of this Schedule.

4. Any person who was, immediately before the transfer date, an employee as defined by the regulations, and has not entered the service of the corporation, shall be deemed to have retired immediately before the transfer date from the service of the company with the consent of the company, and, for the purposes of any provisions of the regulations relating to any Trustees' Assurance, shall be deemed to have so retired during the period of ten years preceding the date of the maturity of that Assurance.

5. Subject to the provisions of this Part of this Schedule the scheme shall have effect as if—

- (a) the corporation had been in existence on the date of the execution of the Trust Deed and had executed that document in place of the company; and
- (b) the corporation had been a party to the Superannuation Scheme to which the Trust Deed relates, and to any agreement relating to that Superannuation Scheme, in place of the company; and
- (c) for any reference (by whatever form of words) in the scheme to the company there were substituted a reference to the corporation; and
- (d) references to associated or subsidiary companies were omitted from the scheme; and
- (e) the service or employment under or by the company of any person had been service or employment under or by the corporation; and
- (f) any act or thing done, permitted or omitted by or on behalf of the company (including any thing which is by virtue of the preceding provisions of this Part of this Schedule to be deemed to have been permitted by the company) had been done, permitted or omitted, as the case may be, by the corporation.

6. Anything required or authorised by the scheme to be done by the secretary or a director of the company may be done by such member or officer of the corporation as the corporation may appoint for the purpose.

7. Nothing contained in this Part of this Schedule shall prejudice or affect any power of altering, cancelling or modifying all or any of the provisions of the Trust Deed or of the regulations in accordance with the provisions of the Trust Deed, or of determining the trusts created under the Trust Deed in accordance with the provisions of the regulations, or any power of terminating or modifying the Superannuation Scheme to which the Trust Deed relates, or any agreement relating to the Superannuation Scheme, in accordance with the terms of that Scheme or agreement.

2ND SCH.
—cont.

THIRD SCHEDULE

Section 41.

REPEALS

Session and Chapter	Short title	Extent of repeal
2 & 3 Geo. 6. c. 61.	The British Overseas Airways Act, 1939.	The whole Act.
8 & 9 Geo. 6. c. 21.	The Ministry of Civil Aviation Act, 1945.	The whole Act, so far as unrepealed.
9 & 10 Geo. 6. c. 70.	The Civil Aviation Act, 1946.	The whole Act, so far as unrepealed.
10 & 11 Geo. 6. c. 35.	The Finance Act, 1947	In subsection (2) of section fifty-seven, the words "The British Overseas Airways Corporation" and the words "The British European Airways Corporation; and The British South American Airways Corporation".
12 & 13 Geo. 6. c. 57.	The Airways Corporations Act, 1949.	The whole Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Petty Sessions (Ireland) Act, 1851	14 & 15 Vict. c. 93.
Local Loans Act, 1875	38 & 39 Vict. c. 83.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Finance Act, 1895	58 & 59 Vict. c. 16.
Finance Act, 1899	62 & 63 Vict. c. 9.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
British Overseas Airways Act, 1939	2 & 3 Geo. 6. c. 61.
Finance Act, 1946	9 & 10 Geo. 6. c. 64.
Civil Aviation Act, 1946	9 & 10 Geo. 6. c. 70.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Airways Corporations Act, 1949	12, 13 & 14 Geo. 6. c. 57.
Civil Aviation Act, 1949	12, 13 & 14 Geo. 6. c. 67.